

STANDING ORDER NO. 205

Subject:- Inquests u/s 174 Cr.P.C.-Disposal of unclaimed dead-bodies
Instructions regarding.

It has been observed that all cases in which the police hold and inquest under section 174 of the Cr.P.C. the dead bodies are usually sent for post-mortem examination. This results in unnecessary increase in the work of the medical authorities and causes great inconvenience and annoyance to the relatives of the deceased.

2. The attention of all Investigating Officers is, therefore, invited to Sec. 174(3) of the Cr.P.C. and Punjab Police Rules 25.36 under which discretion has been given to dispense with the post-mortem of the body if the investigating officer is fully satisfied that the cause of death is established beyond any doubt. Instructions contained in PPR 25.37 and 25.39 will be strictly observed by the investigating officers while sending dead bodies for post mortem examination.

3. In all cases where death appears to have been due to homicidal, accidental, suspicious causes or cases in which prosecutions have to be launched or where suspicion exists that the death was due either to suicide or to an act rendering perpetrator thereof liable to a criminal charge, the body must be sent to the medical authorities for conducting post-mortem.

4. In suicide cases where cause of death has been established to the entire satisfaction of the investigating officer beyond any doubt, or other cases of beggars and destitutes dying in the streets from natural causes without any mark of external injury on their

persons or in which cause of death is very well known, the post-mortem examination may be dispensed with. Prior permission of the gazetted officer Illaqa or the Dy. Commissioner of Police Distt. should, however, be obtained for dispensing with the post-mortem examination in such cases.

5. As the Unclaimed dead bodies (which are not to be subjected to post-mortem examination) can be usefully employed in the anatomy departments of Medical Colleges for dissection purposes, these may be sent to the Hospitals/Medical Institutions i.e. Lady Hardinge Medical College, the All India Institute of Medical Sciences, G.T.B. Hospital, Shahdara, Maulana Azad Medical College etc. in consultation with the Police Surgeon. The nearest College authorities may be informed on telephone whenever there is an unclaimed dead body available. They will please arrange to have the dead body removed to the college.

The timings for forwarding such bodies for various institutions and the documents which should accompany them are given in Appendix - 'A'.

6. Police Officers forwarding dead bodies to Police Surgeon for post-mortem examination must send their reports together with all relevant documents without which post-mortem examination is not possible according to the following schedule:-

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| i) In case of dead bodies reaching mortuary during night. | (a) 8 A.M. (During Summer Ist. April to 30th September) |
| | (b) 9 A.M. (During Winter 1st October to 31st. March). |
| ii) In case of dead bodies reaching mortuary during day. | (a) 5 P.M. (During Summer) as defined above. |
| | (b) 3 P.M. (During Winter) as defined above. |

7. The Police Surgeon has promised to perform post-mortem on dead bodies admitted in Mortuary in cases falling in category (i) upto 10.00 A.M. and in cases falling in category (ii) before sun set.

8. The police reports and documents referred to in para No. 6 above shall include the following and it shall be the personal responsibility of the police officer sending dead bodies for post-mortem examination and also that of the Supervising Officer as specified in the following para to ensure that these reports and documents are complete in all respects, are properly written and delivered in mortuary before the time specified in para-6 above;

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| i) INJURY REPORT | : This report shall be duly filled up by the investigating officer in from PPR 25.39(1). |
| ii) HOSPITAL REPORT | : This report is needed in case the victim after receiving injuries is admitted in a hospital and subsequently succumbed to injuries there. It shall include a short history of the case as recorded by the hospital |

authorities including diagnosis, treatment and apparent cause of death of the patient. This report shall be duly signed by the hospital authorities. (S91)

9. Investigating Officers sending dead bodies to the medical institutes for post-mortem examination shall get the papers forwarded by their respective SHOs. If the SHO is not readily available the reports may be sent direct by I.O.'s.

10. While sending dead bodies to mortuary for post-mortem examination, the concerned investigating officer shall mention their full name in block letters underneath their signatures and also ensure that the seal of the officer or police station from which such a dead body has been referred for post-mortem examination exists on the inquest report papers accompanying the dead body.

11. Dead bodies meant for post-mortem examination shall be despatched to and deposited in the mortuary as soon as necessary papers concerning them have been completed. As provided in Punjab Police Rule-25.37(5), such dead bodies shall be sent to the mortuary under the escort of at least 2 Police officers, who shall remain in charge of the dead bodies at the mortuary till the post-mortem examination has been performed and dead bodies have been handed over to their claimants or otherwise disposed of.

12. The local police should make every intelligent effort to establish the identity of dead bodies and inform the relatives of the deceased by the quickest means. Where relatives are likely to come to take the dead body, disposal should be deferred for a day or two in consultation with the Surgeon. The Distt. DCP and their subordinate authorities must ensure that the human aspect in these cases is kept in view while observing the latter of the rules. There should be no undue haste in such matters. If a holiday intervenes in the first 24 hours after death, an attempt should be made invariably to detain the body for one working day. In case of a dead body remaining unidentified, the SHO concerned in consultation with DCP should give instructions about its disposal. In the event of a dead body having to be disposed of unidentified complete details of dead body i.e. photographs, thumb-impression etc. should be retained.

13. The local police must ensure that in medico-legal cases dead-bodies are referred to the concerned medical officer for post-mortem examination without any undue delay and the relatives of the deceased are given possession of the dead body at the earliest. It is also added that in important and emergent cases of death C.F.S.L. expert can be called by the I.Os provided they have useful exhibits/clues available at the scene and have guarded them properly till the arrival of expert.

This supersedes old S.O. No.205 issued vide No.22193-350/C&T.AC-I, dated 2.9.77.

Sd/-

(VIJAY KARAN)

COMMISSIONER OF POLICE, DELHI

No.XXII/12/Spl/36514-750/C&T.AC-II, dated 5/6/89

APPENDIX - A

Sl. No.	Name of the Institute and Tel.No of Anatomy Department	Timing of sending unclaimed dead bodies. Day/Night	To whom to be sent	Documents which should accompany
1	2	3	4	5
1.	A.I.I.M.S., New Delhi Tel.No.661123/216	Only during day time from 10 A.M. to 5 P.M.	Head of Anatomy Deptt.	1. Documents as per Sec. 174Cr.P.C. 2. M.L.C. 3. D.D. Entry 4. Death Certificate. 5. Death Summary 6. Evidence of two witnesses.
2.	Maulana Azad Medical college, Delhi Gate, Delhi Tel. No.3319271.	Round the clock	Dr. (Mrs.) M. Kaul, Head of Deptt, of Anatomy	-do-
3.	Ramgarh Bahadur College and Hospital, Shahdara Tel. No. 2286262/354	Round the clock	Medical Supdt. (Anatomy Deptt.)	-do-
4.	Lady Hardinge Medical College Tel. No. 343728/292	10 A.M. to 3 P.M.	Head of Deptt. of Forensic Medical and Toxilogly.	-do-